



Tribunals Ontario
Landlord and Tenant Board

Instructions: Form L1

Application to Evict a Tenant for Non-Payment of Rent and to Collect Rent the Tenant Owes

(Disponible en français)

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Section A: When to use this application

You can use this application if the tenant owes you rent and you want to:

- end the tenancy and evict the tenant
- and**
- collect the money the tenant owes you up to the date they move out of the rental unit

If the tenant made a payment by cheque that was returned to you because of non-sufficient funds (NSF) and the tenant has not paid you back for the charges related to that NSF cheque, you can also include these amounts in your application.

You cannot file this application if the tenant has moved out of the rental unit. If the tenant has already moved out, you can apply to court for the money the tenant owes you.

If you do not want to evict your tenant, but you want to get an order from the Landlord and Tenant Board (LTB) so that you can collect the rent the tenant owes you, you can complete the [Application to Collect Rent the Tenant Owes \(Form L9\)](#) and file it with the [LTB](#). However, you cannot file the L9 application if the tenant has moved out of the rental unit. You should also be aware that if the [LTB](#) issues an order on an L9 application and the tenant still does not pay, you cannot use that order to evict the tenant.

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with the LTB.

In the space for the date, you must fill in the date you are filing the application with the LTB.

Part 3: General Information

Landlord's Name and Address

In the *Landlord's Name and Address* section, fill in the landlord's name and address. If the landlord is a company, fill in the name of the company under "First Name". Include both daytime and evening telephone numbers and a fax number and e-mail address, if you have them.

If there is more than one landlord, fill in information about one of the landlords in this section of Part 3. Provide the names, addresses and telephone numbers of the additional landlords on the [Schedule of Parties Form](#) which is available from the LTB website at tribunalsontario.ca/l1b.

Tenant Names and Address

In the *Tenant Names and Address* section, fill in the tenant's name. If two tenants live in the rental unit, fill in both their names. If more than two tenants live in the rental unit, fill in information about two tenants in this section of Part 3. Provide the names, addresses and telephone numbers of any additional tenants on the [Schedule of Parties Form](#) which is available from the LTB website at tribunalsontario.ca/l1b.

Mailing Address

Fill in the tenant's mailing address **only** if it is different from the address of the rental unit. Provide the tenant's daytime and evening telephone numbers. Also provide the tenant's fax number and e-mail address if you know them.

Related Applications

If you or your tenant have filed other applications that relate to this rental unit, and those applications **have not** been resolved, fill in the file numbers in the space provided.

Part 4: Reasons for your application

Shade the appropriate box or boxes to indicate what you are applying for.

Shade either the **Yes** or **No** circle to answer whether or not the tenant is still living in the rental unit on the date you file this application. The tenant must be living in the rental unit when you file this application.

Shade the appropriate circle to indicate whether the tenant pays rent by the **month**, **week** or **other**. If you choose "other", fill in the frequency of rent payments (for example, bi-weekly) in the space provided.

Information about the rent deposit

The LTB will subtract any rent deposit and interest you owe the tenant from the amount of rent the tenant owes you.

If you did not collect a rent deposit, leave these boxes blank. If you collected a rent deposit from the tenant:

- first, fill in the amount of rent that you are currently holding as a rent deposit,
- next, fill in the date you collected the rent deposit,
- finally, if you have paid the tenant interest on the rent deposit, fill in the start date and end date of the

last period for which you paid the tenant interest on the rent deposit.

Part 5: Details of the landlord's claim

Section 1: Rent Owing: Complete the Rent Owing table to show how you calculated the amount of rent the tenant owes you.

"Rent" includes the basic rent for the rental unit, plus any amount the tenant pays you separately for services (such as parking). If the tenant is responsible for paying all or a portion of a utility bill (such as hydro) directly to the utility company or indirectly through the landlord, this is not considered rent. However, if the tenant is required to pay a flat rate to the landlord each month for a utility, this would meet the definition of rent.

If the tenant owes more rent than when you served the *N4 Notice of Termination for Non-payment of Rent*, include all the rent owing up to the date you file the application.

If the tenant owes you rent for more than three rental periods, you can combine two or more rental periods in the first or second row of the table. However, in the last row of the table that you complete, you must show the rent charged, rent paid and rent owing for the last rent period for which the tenant owes rent.

Example: The tenancy agreement between Bruce Campanolo, the landlord, and Sophia Maxwell, the tenant, requires Sophia to pay \$1000 on the first of each month.

On November 1, 2014 Sophia paid only \$900 and on December 1st, she only paid \$700. On January 1, 2015 Sophia gave Bruce a cheque for \$1000 which was returned NSF.

On January 14th, Bruce gave Sophia an *N4 Notice to End your Tenancy for Non-payment of Rent*. The notice set out that she owed \$1400 and that she had until January 28th to pay or move out.

Sophie did not pay or move out by January 28th, so on January 29th Bruce filed this application with the LTB. This is how he filled out the rent owing table:

Rent Period		Rent Charged \$	Rent Paid \$	Rent Owing \$
From: (dd/mm/yyyy)	To: (dd/mm/yyyy)			
01/11/2014	30/11/2014	1,000.00	900.00	100.00
01/12/2014	31/12/2014	1,000.00	700.00	300.00
01/01/2015	31/01/2015	1,000.00	0.00	1,000.00
Total Rent Owing \$				1,400.00

Section 2: NSF Cheque Charges: If the tenant made a payment by cheque that was returned to you because of non-sufficient funds, and the tenant has not paid you back for the charges related to the NSF cheque, you can include these amounts in your application. If the tenant does not owe you anything related to NSF charges, leave this section blank.

Complete the table to show how you calculated the amount the tenant owes you. Fill in one row of the table for each NSF cheque the tenant gave you. Include the following information:

- the amount of the cheque,
- the date of the cheque,
- the date your financial institution charged you for the NSF cheque (under *Date NSF Charge Incurred*),
- the amount the bank charged you for the NSF cheque (under *Bank Charge for NSF Cheque*),
- the amount of your related administration charges (under *Landlord's Administration Charge*),

Note: A landlord's administration charge for NSF cheques can include your personal or corporate costs related to the handling of NSF rent cheques. For example, this charge may include the costs for additional accounting expenses or tenant notification in cases of NSF cheques. The maximum administration charge for an NSF cheque allowed by the *Residential Tenancies Act, 2006* (the Act) is \$20 per cheque.

- Calculate the amounts for each row in the *Total Charge* column by adding the amount for *Bank Charge for NSF Cheque* and the amount for *Landlord's Administration Charge*. Do **not** include the Cheque Amount.
- Calculate the amount for *Total NSF Related Charges Owing* by adding the amounts you filled in the *Total Charge* column.

Example: Sophia Maxwell, the tenant, gave Bruce Campanolo, the landlord, a cheque for \$1000.00, dated January 1st for January's rent, but the cheque was returned NSF.

As a result, the bank charged Bruce an NSF fee of \$5; the fee appeared on his bank statement on January 14th. Bruce also had costs related to the handling of the NSF cheque.

Bruce gave Sophia an *N4 Notice to End your Tenancy for Non-payment of Rent*. Sophia did not pay the rent by the termination date in the notice so Bruce applied to terminate the tenancy.

Bruce filled out the table as shown below to show how he calculated the amount owing for the NSF related charges:

Cheque Amount \$	Date of Cheque dd/mm/yyyy	Date NSF Charge Incurred dd/mm/yyyy	Bank Charge for NSF Cheque \$	Landlord's Administration Charge \$	Total Charge \$
1,000.00	01/01/2015	14/01/2015	5.00	20.00	25.00
	/ /	/ /	.	.	.
	/ /	/ /	.	.	.
Total NSF Related Charges Owing \$					25.00

Part 6: Total Amount Owing

Transfer the Total Rent Owing amount from Section 1 of Part 5 to the Total Rent Owing field in Part 6.

Transfer the Total NSF Related Charges Owing amount from Section 2 of Part 5 to the Total NSF Cheque Related Charges Owing field in Part 6.

Under Application Fee, fill in the application fee. For a list of the LTB's fees visit the [Filing and Fees webpage](#).

Calculate the amount under Total Amount Owing by adding the Total Rent Owing amount, the Total NSF Cheque Related Charges Owing amount and the application fee. Then, transfer this amount to the box in Part 2. The date you fill in Part 2 is the date you are filing the application with the LTB.

Example: When landlord Bruce Campanolo files this application, tenant Sophia Maxwell owes him \$1400 in rent, \$25 in NSF charges and \$201 for the application fee. This is how Bruce filled out Part 6 of the form:

Total rent owing: (from Part 5, Section 1)	\$	1 , 4 0 0 . 0 0
Total NSF cheque related charges owing: (from Part 5, Section 2)	\$	2 5 . 0 0
Application Fee:	\$	2 0 1 . 0 0
Total:	\$	1 , 6 2 6 . 0 0

Note: the most the LTB can order based on your claim is \$50,000. If you believe the tenant owes you more than \$50,000, and you want to collect the full amount, you should apply to court and not to the LTB. Once the LTB issues an order based on your application, you no longer have any claim to amounts greater than \$50,000 from your tenant.

Part 7: Signature

If you are the landlord, shade the circle marked "Landlord". Then, sign the application form and fill in the date.

If you are the landlord's representative, shade the circle marked "Representative". Then, sign the application form and fill in the date.

Request for Accommodation or French-Language Services

The LTB wants to ensure that everyone who uses its services can ask for and receive accommodation and/or French Language services in order to be able to participate in its proceedings on an equal basis.

Shade the appropriate box or boxes on the form to indicate whether you need accommodation under the Ontario *Human Rights Code*, French-language services or both. The LTB will not include a copy of this form when we give the other parties a copy of the application form. However, the information will be included in your application file. The file may be viewed by other parties to the application.

If you require accommodation under the *Human Rights Code*, explain what services you need in the space provided.

Payment Information Form

Complete this form to provide the LTB with the information required to process your application. Your application will not be accepted if you do not pay the application fee at the time you file the application. If you owe money to the LTB as a result of failing to pay a fee or any fine or costs set out in an order, your application may be refused or discontinued.

You may request a fee waiver if you meet the financial eligibility requirements set out by the LTB. You will need to complete the Fee Waiver Form which is available from the LTB website at tribunalsontario.ca/lrb. For more information about fee waivers and the eligibility criteria, go to the fee waiver rules and practice direction on the Rules of Practice page of the LTB website.

Payment Method

Shade the appropriate box to show whether you are paying by money order, certified cheque, Visa or MasterCard. If you file using the [Tribunals Ontario Portal](https://tribunalsontario.ca/lrb), you can file and pay directly on the system using a

debit or credit card. Do not upload credit card information on documents if you are using the Tribunals Ontario Portal.

If you are filing my mail or courier, you can pay by credit card by completing the [Credit Card Payment Form](#) and submitting it with your application. You cannot pay by cash or with debit card if you are filing your application by mail or courier.

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Section D: What to include when you file your application

To file this application, you must include the following:

- The completed L1 application form,
- A copy of the *N4 Notice to End Your Tenancy for Non-payment of Rent Form* you gave the tenant,
- The Certificate of Service showing how and when you gave the tenant the N4 form,
- The application fee. For a list of the LTB's fees visit the [Filing and Fees webpage](#).

Your application will be refused if any of the items listed above are missing.

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Section E: How to file your application

You can file your application in one of the following ways:

1. Tribunals Ontario Portal

Complete and pay your L1 application online using [Tribunals Ontario Portal](#).

If you use the Tribunals Ontario Portal, you must pay by credit card or debit card through the portal and don't need to complete a separate credit card payment form.

2. By Mail or Courier

Mail or courier your application to the nearest [LTB](#) office.

To find a list of [LTB office locations](#) visit the [LTB](#) website at tribunalsontario.ca/ltb. You can also call the LTB at 416-645-8080 or 1-888-332-3234 (toll-free).

If you mail or courier your application, you can pay the application fee by certified cheque, money order, Visa or MasterCard. Certified cheques and money orders must be made payable to the Minister of Finance.

If you are filing by mail or courier and paying by Visa or Mastercard, you must complete the [Credit Card Payment Form](#) and submit it with your application.

Do not include credit card information on the form if you are using the Tribunals Ontario Portal.

3. By Fax

Effective December 31, 2021, the [LTB](#) has decommissioned its fax machines assigned to regional offices. This means that except for a limited number of circumstances, the [LTB](#) no longer accepts documents, including applications, by fax.

If you must use fax to file applications or submit documents urgently because you don't have access to

a computer and/or internet or can't visit a local ServiceOntario office, applicants can fax applications and documents that don't have a fee associated, or where they are eligible for a fee waiver, to 1-833-610-2242 or (416) 326-6455.

Due to Payment Card Industry security compliance requirements, the LTB cannot accept credit card payment via fax. Applications with credit card information will be automatically deleted and not processed. Please contact the LTB at 1-888-332-3234 for information on how to submit payment information.

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Section F: What to do if you have questions

You can visit the LTB website at: tribunalsontario.ca/l1b.

You can call the LTB at 416-645-8080 from within the Toronto calling area, or toll- free at 1-888-332-3234 from outside Toronto, and speak to one of our Customer Service Officers.

Customer Service Officers are available Monday to Friday, except holidays, from 8:30 a.m. to 5:00 p.m. They can provide you with **information** about the *Residential Tenancies Act* and the LTB's processes; they cannot provide you with legal advice. You can also access our automated information menu at the same numbers listed above 24 hours a day, 7 days a week.

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